

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

17. MELISSA FLANIGAN V. SHAUN FLANIGAN

23FL0255

On October 3, 2025, Petitioner filed a Request for Order (RFO) seeking modification of the custody and parenting plan orders as well as attorney's fees and sanctions. Respondent filed an Order Shortening Time and RFO seeking to compel and clarification of the current orders on November 14, 2025.

The parties were ordered to appear for hearing on both RFOs on December 4, 2025. The parties presented the court with an agreement which was accepted by the court and all issues were continued to the present date.

On November 26, 2025, Respondent filed an RFO for child custody, child visitation, child support, spousal support, and enforcement of the order for a vocational evaluation.

Respondent's Supplemental Declaration was filed and served on January 2, 2026. He filed another declaration on January 16th.

Petitioner filed a Responsive Declaration to Request for Order, a Supplemental Declaration, and an Income and Expense Declaration on January 20th.

Respondent's Reply Declaration, Memorandum of Points and Authorities, and another Reply Declaration were all filed and served on January 20th.

Respondent filed a Supplemental Declaration on February 23, 2026. It was electronically served on February 20th.

Respondent filed a further Declaration on February 26, 2026. It was electronically served on February 20th. The court notes the February 23rd and 26th declarations appear to be identical.

Respondent filed another Supplemental Declaration on February 13, 2026. It was served on the same day.

Petitioner filed a Supplemental Declaration on March 16, 2026. It was served the same day.

Respondent filed a Reply Declaration on March 17, 2026. It was served the same day.

The parties are ordered to appear for the hearing.

TENTATIVE RULING #17: THE PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
March 26, 2026
8:30 a.m./1:30 p.m.

18. KEVIN WENTWORTH V. CHEYENNE FULLER

25FL1247

Petitioner filed a Request for Order (RFO) on December 29, 2025, seeking child custody and parenting plan orders, as well as an order for the child to obtain a passport. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on January 28, 2026, and a review hearing on March 26, 2026. Proof of Service shows Respondent was served with the FL-300 and a blank FL-320. However, there is no Proof of Service showing Respondent was served with the CCRC referral and other necessary forms.

Both parties attended CCRC and could not reach any agreements. A report with recommendations was filed with the court on March 4, 2026. Copies were mailed to the parties on March 5, 2026.

Petitioner filed a Declaration on December 29, 2025. There is no Proof of Service for this document, therefore, the court has not considered it.

Respondent has not filed a Responsive Declaration.

The court finds good cause to proceed, despite the defects in service, as Respondent appeared at CCRC and was served timely with the RFO and blank Responsive Declaration.

The court has read and considered the filings as outlined above. The court finds the recommendations as set forth in the CCRC report are in the best interest of the minor. The court adopts the recommendations as set forth in the March 4th CCRC report. As to Petitioner's request for the minor to obtain a passport, the court has ordered joint legal custody. As such, the parties must both sign the application for the passport. The court is directing the parties to work cooperatively to obtain a passport for the minor.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH), however this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: THE COURT FINDS GOOD CAUSE TO PROCEED, DESPITE THE DEFECTS IN SERVICE, AS RESPONDENT APPEARED AT CCRC AND WAS SERVED TIMELY WITH THE RFO AND BLANK RESPONSIVE DECLARATION. THE COURT FINDS THE RECOMMENDATIONS AS SET FORTH IN THE CCRC REPORT ARE IN THE BEST INTEREST OF THE MINOR. THE COURT ADOPTS THE RECOMMENDATIONS AS SET FORTH IN THE MARCH 4TH CCRC REPORT. AS TO PETITIONER'S REQUEST FOR THE